



Delaware County Council Meeting February 22nd 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=nL6Uc4xZ5oQ
Publication Date	2022-02-22T20:39:50Z
Target Category	delaware_county

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Delaware County Council Meeting Report

Meeting Date: February 22, 2022

Report Type: Comprehensive Municipal Meeting Summary

1. Pre-Meeting Hearings & Committee Work Sessions

The transcript indicates that the regular meeting was delayed because a preceding meeting of the Board of Commissioners ran longer than scheduled [00:00:18](#). No separate statutory public hearing or committee work session was held immediately prior to calling the regular meeting to order.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at approximately 11:00 AM [00:00:14](#) on February 22, 2022 [00:00:11](#), by the presiding officer of the Delaware County Council [00:00:07](#).
- **Attendance:**
 - **Members Present:** Mr. Ballard, Ms. Chambers, Ms. Piper, Mr. Quakenbush, Mr. Webb, Mr. Alexander, and Mr. Freeman [[00:00:58](#)<U+2013>[00:17](#)]. (Note: Mr. Freeman and Mr. Alexander are noted in the roll call).
 - **Members Absent:** None explicitly noted.

- **Presiding Officer:** Identified as the Council President/Chair leading the proceedings.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Scott 00:00:26.
 - **Approval of Agenda:** The agenda was verified as posted/advertised and approved by roll call vote (Chambers, Piper, Quakenbush, Webb, Ballard, Alexander: Yes) [00:01:49<U+2013>02:23].
 - **Legal Counsel Transition:** 00:02:27 The council acknowledged the resignation of Bill Hughes as council attorney from the firm Beasley Gilkeson and approved amending the contract to include Ben Freeman.
 - **Action & Vote:** Approved by roll call vote (Piper, Quakenbush, Webb, Ballard, Chambers, Alexander: Yes) [00:03:19<U+2013>03:30].
 - **Approval of Prior Minutes:** 00:03:41 January meeting minutes approved by roll call vote (Quakenbush, Webb, Ballard, Chambers, Piper, Alexander: Yes) [00:03:56<U+2013>04:08].
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4. Substantive Business & Board Action

- 00:04:19 **Circuit Court Financial Transfer:**
 - **Sponsor / Presenter:** Donna / Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Request to transfer \$7,000 from line item 127 (Probation Officer) to line item 441 (Office Equipment) to fund an upgrade to the panic button security system at the justice center from analog to digital. Additional funding is supplemented by incentive funds and participating departments.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Webb, Ballard, Chambers, Piper, Alexander: Yes) [00:07:00<U+2013>07:07].
- 00:07:17 **County Clerk Line-Item Transfer:**
 - **Sponsor / Presenter:** Donna / Rick (via text message).
 - **Deliberation Summary:** Internal personnel line transfer (\$24,702.68) for a deputy clerk position replacement due to a resignation for health reasons. Net request is zero.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ballard, Chambers, Piper, Quakenbush, Webb, Alexander: Yes) [00:07:52<U+2013>08:01].
- 00:08:02 **EMS Line-Item Transfers:**
 - **Sponsor / Presenter:** Donna / Maintenance Office Manager.

- **Deliberation Summary:** Adjustments moving funds between positions (\$38,755.14) to cover two replacement personnel positions. Net request is zero; approved by the finance committee.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Chambers, Piper, Quakenbush, Webb, Ballard, Alexander: Yes) [00:09:09<U+2013>09:20].
- **00:09:22 Jail & Commissary Clerk Salary Adjustments:**
 - **Sponsor / Presenter:** Donna / Sheriff Skinner / Nancy.
 - **Deliberation Summary:** A series of transfers totaling a net request of zero, notably increasing the base pay of the Commissary Clerk position to match the starting pay of Corrections Officers (\$30,000 threshold). The previous clerk left to become a merit deputy, and the low prior pay yielded unqualified applicants. Shifting funds allows qualified corrections officers to step into the role without a pay cut. Part-time lines will be permanently reduced at the next budget cycle.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Piper, Quakenbush, Webb, Ballard, Chambers, Alexander: Yes) [00:15:39<U+2013>15:47].
- **00:15:54 Detention Alternatives Initiative Transfer:**
 - **Sponsor / Presenter:** Donna / Jeff Hansen, Chief Probation Officer.
 - **Deliberation Summary:** Transfer of \$1,117.75 for food items used during a regional gang intelligence training lunch-and-learn hosted in January with the Indiana State Police. Net request is zero.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Quakenbush, Webb, Ballard, Chambers, Piper, Alexander: Yes) [00:17:03<U+2013>07:13].
- **00:17:14 Sheriff Department Budget Transfer:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Transfer of \$51,544.66 between line items. Net request is zero.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Webb, Ballard, Chambers, Piper, Quakenbush, Alexander: Yes) [00:17:38<U+2013>17:46].
- **00:17:46 Jail Department Budget Transfer:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Transfer of \$30,877.84 between line items. Net request is zero.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ballard, Chambers, Piper, Quakenbush, Webb, Alexander: Yes) [00:18:13<U+2013>08:20].
- **00:18:23 Communication Center (911 Dispatch) Transfers & Lateral Hires:**
 - **Sponsor / Presenter:** Donna / Director Cummings / Ryan (Council Representative).

- **Deliberation Summary:** Complex series of line-item adjustments (net request zero) addressing staffing shortages and operational culture. Director Cummings noted 8 open positions and introduced a policy allowing experienced lateral transfers (with 3<U+2013>14 years of experience) to come in at 100% pay rather than starting at probationary lower tiers, saving training time and reducing severe burnout and mandatory overtime.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Chambers, Piper, Quakenbush, Webb, Ballard, Alexander: Yes) [00:25:27<U+2013>05:35].
- **00:25:38 Jail Department Transfer:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Transfer of \$30,877.84. Net request is zero.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Piper, Quakenbush, Webb, Ballard, Chambers, Alexander: Yes) [00:26:06<U+2013>06:13].
- **00:26:14 Prosecutor Pre-Trial Diversion Transfer:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Transfer of \$33,834. Net request is zero.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Quakenbush, Webb, Ballard, Chambers, Piper, Alexander: Yes) [00:26:40<U+2013>06:47].
- **00:26:51 40 Court Health Insurance Appropriation:**
 - **Sponsor / Presenter:** Donna / Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Request for an additional \$565 appropriation for health insurance. Explanations noted a discrepancy/reduction made after budget hearings by the auditor's office to balance rates.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Webb, Ballard, Chambers, Piper, Quakenbush, Alexander: Yes) [00:28:53<U+2013>02:05].
- **00:29:06 EMS Salary Reallocations:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Appropriation request of \$90,000 to correct a budget hearing misunderstanding where employee incentive rates were mistakenly removed/cut against intended base pay increases designed to retain experienced staff.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ballard, Chambers, Piper, Webb, Alexander: Yes) [00:32:02<U+2013>02:12].
- **00:32:13 Surveyor's Cornerstone Perpetuation Fund:**
 - **Sponsor / Presenter:** Donna.

- **Deliberation Summary:** Request for \$30,700 (\$700 longevity, \$30,000 professional services) from the Cornerstone Perpetuation Fund.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Piper, Quakenbush, Webb, Ballard, Chambers, Alexander: Yes) [00:32:48<U+2013>02:58].
- **00:33:08 EMA Grant Fund Reappropriations:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Reappropriation of leftover grant funds from the prior year (\$8,235 total: \$3,342.41 supplies, \$4,892.60 equipment) and a separate small engine/aircraft grant line for equipment (\$5,400) to expand the drone program.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call votes for both items (Piper, Quakenbush, Webb, Ballard, Chambers, Alexander: Yes) [00:33:36<U+2013>03:46; 00:34:20<U+2013>04:29].
- **00:34:29 EMA Capital Improvement Vehicle Repair:**
 - **Sponsor / Presenter:** Donna / EMA Representative.
 - **Deliberation Summary:** Transfer of \$10,000 from capital improvements to cover a transmission replacement (~\$9,400 with a 3-year unlimited warranty) for a 2011 GMC dually truck with 30,000 miles used to tow the heavy EOC/Viper team trailer and plow snow.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Webb, Ballard, Chambers, Piper, Quakenbush, Alexander: Yes) [00:36:26<U+2013>06:36].
- **00:36:37 Fairgrounds Heartland Hall Sprinkler System:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Appropriation of \$27,000 for a new fire sprinkler system in Heartland Hall mandated by the fire marshal under threat of closure. Originally intended for ARPA funding, but failed to meet strict federal eligibility/documentation criteria before the prior appropriation died in December.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ballard, Chambers, Piper, Quakenbush, Webb, Alexander: Yes) [00:38:00<U+2013>08:08].
- **00:38:13 Health Department Grant Appropriation:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Appropriation of \$3,500 from local health maintenance state grant funds for staff salary adjustments (clinic operator, permit assistants, environmental director) reflecting increased state data and COVID-related responsibilities.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Chambers, Piper, Quakenbush, Webb, Ballard, Alexander: Yes) [00:42:40<U+2013>02:51].

- **00:42:56 Reassessment Board of Appeals Appropriation:**
 - **Sponsor / Presenter:** Donna.
 - **Deliberation Summary:** Appropriation of \$2,059.50 (\$500 board of appeals, \$500 per diem, \$500 per diem, \$559.50 travel/other) for board member training, meetings, and stipends.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Piper, Quakenbush, Webb, Ballard, Chambers, Alexander: Yes) [00:44:53<U+2013>05:04].
- **00:45:05 Omnibus Financial Vote:**
 - **Deliberation Summary:** Motion to approve financial transfers, amend the salary ordinance (with staff reductions), and amend hiring freeze ordinance 2020-015.
 - **Action & Vote Disposition:** Approved by roll call vote (Quakenbush, Webb, Ballard, Chambers, Piper, Alexander: Yes) [00:45:23<U+2013>05:31].
- **00:46:08 Legal Counsel Report on Solar Farm Tax Abatement:**
 - **Sponsor / Presenter:** Ben Freeman (Legal Counsel, Beasley Gilkeson) / Brad Bookout / Jason Simler (Baker Tilly).
 - **Deliberation Summary:** Presentation of a legal memorandum addressing whether the council has the authority to rescind Resolution 2021-037 (designating an economic development area and approving tax abatement for Meadowforge Solar/Invenergy LLC). Legal counsel concluded the council possesses the inherent home rule authority to reconsider and rescind/amend its legislative actions, provided it follows statutory public notice (10-day notice) and holds a public hearing.
 - Extended discussion ensued regarding Baker Tilly's financial reports. Council members expressed frustration and confusion over whether projected tax figures (\$16.6M over 35 years for West Dell Schools) represented "new revenue" or a tax-burden shift/wash for local property owners. Representatives from Baker Tilly and Invenergy clarified that Indiana's statutory maximum levy caps mean schools/counties do not collect excess tax dollars; instead, new industrial valuation lowers the tax rate for all other taxpayers in the district.
 - **Item-Specific Public Input:** Addressed during Open Public Comment.
 - **Action & Vote Disposition:** A motion was made by Mr. Webb and seconded by Ms. Chambers to refer the matter back to the Tax Abatement Committee for review. The motion **failed** by a roll call vote (Webb: Yes; Ballard: No; Chambers: Yes; Piper: No [not at this time]; Quakenbush: No; Alexander: No) [01:27:01<U+2013>07:13].

5. Open Public Comment / Citizen Forum

- **01:32:54 Andrew Pop:** Commended the 911 dispatch improvements. Expressed concern over the solar project's impact on local agriculture, noting that 20-cent tax savings do not outweigh community disruption.

- **01:35:47 James Wermer:** Criticized the council for lack of homework on the solar project and questioned the scope (comparing 3,000 acres to 600 Meijer stores). Disputed claims regarding superintendent communications.
- **01:39:20 Brian Richards:** Argued that corporations investing heavily do not need tax abatements. Stressed the importance of preserving farm ground for the next generation of family farmers.
- **01:43:38 Jerry Pretty:** Questioned how agricultural land was designated as an Economic Revitalization Area (ERA) and how land value is assessed versus crop value.
- **02:01:58 Tom Schroeder (Invenergy Representative):** Reiterated details for the evening's open house (5<U+2013>8 PM at Cornerstone Center for the Arts) and addressed native vegetation root structures and drainage benefits.
- **02:10:24 Tammy Landis:** Shared concerns as a retired teacher and local resident facing a 106-acre solar project near her home. Reported drainage vulnerability and alleged trespassing/property damage by solar contractors leaving deep ruts.
- **02:13:47 Eric Landis:** Urged the council to table the matter and utilize available committee avenues to protect local citizens.
- **02:15:30 Christopher Bilbrey:** Praised the council for hardline statements, noted that property owners received official mailings regarding the project, and suggested starting over with a clean slate.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - The March council meeting was officially moved from its original spring-break conflict date to **March 29** at 11:00 AM **01:31:04**.
 - Acknowledged Emergency Management Agency (EMA) Appreciation Week (February 20<U+2013>26) **02:19:01**.
 - Announced an Invenergy community open house scheduled for the evening from 5:00 PM to 8:00 PM at the Cornerstone Center for the Arts (Main Room) **01:29:30**.
- **Adjournment:** Official motion to adjourn made by Mr. Ballard and seconded by Ms. Piper **02:25:02**. Approved by voice/roll call vote **02:25:20**.